

July 19, 2024 Complaint with Anita from HR

This transcript documents a July 19, 2024 HR conversation with Anita after my EEOC charge. I reported that two performance termination recommendations had been approved by ER but were blocked at the director level by Greg Carfagna based on an additional "coaching documentation" requirement. I explained that other TLs stated they had never been required to provide this information, that I had previously submitted similar documentation successfully, and that I was concerned this may be connected to my prior complaints. HR agreed to follow up with Allan/Greg to clarify whether this was a new, consistent requirement or something being applied differently.

HR Anita:

and it's supposed to get up to 97. Oh, wow. And then we get in the hundreds by Tuesday. But then it starts going down to the low 90s by a week from now. So I don't know. I don't know how you guys do it. Because I look at it like I don't deal well with heat, especially at night. And then my, I do like the winter. I don't like, you know, driving, I don't like all of that stuff, but I do like, I do like noting that I like outdoor sports in the winter, you know, and I just know that I can dress the part and be warm. I don't like being cold either, but I just know I can dress the part. And I know you, because didn't, you haven't always lived in Arizona, right? So. This has been like a change in the last, whatever, year or something. I don't know.

Me:

See, I lived thinking moving to Arizona. Well, I lived out here from 18 to like, 30-ish. So I lived out here for a while and then I moved back to Ohio. And then I came back again. But my son, who's six years old now, he's like, it's really hot, mom. You know, like, I'm like, you'll get used to it. You'll get used to it. It's all about like timing, you know? So the earlier you get out and about and then you can go back out around like six or seven, you know, so.

HR Anita:

Yeah. My sister-in-law, they lived in Arizona for my brother and sister-in-law, lived in Arizona for years and then they went to California and they were, which they liked, because it was warm, but she's more of a warm person, not a cold person. So she's always at Utah, even though that's where she she's from.

Me:

Oh, yeah.

HR Anita:

And they moved back to Utah, hated it, but now they're in southern Utah, which is gets up to not quite as hot as where you're in Phoenix or Arizona or that park, whatever. Because I know there's some cool, isn't Tucson cooler?

Me:

Tucson's a little cooler. So, yeah, and Tucson, it's so weird because Tucson is like just a lot different from Phoenix in general. But yeah, it's a little cooler and more mountains, so you can kind of like, you know, go into the.

HR Anita:

It's probably more like Utah, where I'm. Yeah, it reminds me of that. mountains. And, you know, 20 minutes for me, a bigger Little Cma Canyon, it's 10 degrees cooler.

Me:

Yeah, it reminds me, actually, of of Utah, being surrounded by mountains and stuff.

HR Anita:

Yeah, Anyway, Anyway, I just, but she hates the heat, so now they live in the St. George, which is, you know, border, is down there by the Four Corners where you border Arizona, Nevada, Utah, and Oh, yeah. Wyoming, I think, or somewhere. I don't know. I don't know what the for. Anyway.. Anyway, blah, blah, blah. I just, what I get, way, my peer who's in Arizona, her air conditioning went out. That's who I was thinking of when I brought up the first place. I'm like, oh my gosh, you guys would suffocate there.

Me:

Oh, yeah.. You got to go to a hotel.

HR Anita:

Yeah.. Yes. I think she got a fixed today. Her husband was out of town and she was calling, and they were charging an arm LA, which I think they think they can because you can't live that way. So, of course, you're going to pay the higher price just to have an emergency.

Me:

Yeah, that is terrible. Yeah, that should be illegal.

HR Anita:

I agree! I'm on the same page. Anyway, I'm sorry.

Me:

Oh, you're

HR Anita:

I get caught up in things that I get to take my mind off off of work for a minute.

Me:

Same here. I'm like, tell me about it.

HR Anita:

Okay, so I'm going to start with what you wrote just so I can take notes based off of each piece of it, if that makes sense. Because I have gone over it. I do have some questions but I think I'll go back and forth if I start with whatever I want. So anyway.

Me:

Can I ask you a question? real quick? Because, oh, man, honestly, like, even bringing this up, like, it's really put me under, like, just a weird, and a weird headspace and just like a lot of anxiety and whatnot, to be honest. And after I wrote, I really felt like, you know, maybe I should just. maybe I should just, you know, because I don't know. I just feel like, you know, making complaints or whatever, you know, even though I really feel like shady things are happening. I just feel like, I don't even know if it's worth it to say anything anymore at this point, you know? Honestly..

HR Anita:

Well, let me. Well, let me just skip to one piece of it. Okay. So So, when you say about the documentation, I'm assuming it's for, well, not assuming, I understand that it's for per performance and I and it's for a termination, I rep for term versus a final or a formal, right?

Me:

Right. Mm.

HR Anita:

Okay, so my guess, my first question is, is who in A charge did you talk to? Because my, and granted, we have different roles, right? I The advisors are the ones that look at all the corrective action. Yeah. And my understand understanding for non-examps, I get it for examp, which are far between because that's the caliber of an exempt versus a non-exempt, which you very well know because you with that. Right.. But my understanding, and I'll have to get clarification just because I'm not the expert, but my understanding on a performance wreck for term, documentation is required, which

Me:

Correct. It is.

HR Anita:

Maybe the difference is coaching versus documentation to show that you're treating everyone the same. Because I know that they, I thought they had to, in the record for term, you had to add the documentation that says, well, not only Joe Schall, but Susie and whatever, and they're also not meeting, but they're not at the same point in the process. So you're correct. I have that right, right?

Me:

Right. It's just the coaching.

HR Anita:

So for clarification or confirmation or whatever, it's just the coaching piece that you feel is. Like, added on or like nuanced, right to this. Carfagne is requiring this, yet it's not been a requirement for some of your peers.

Me:

Right, yeah. When I met with all of the other TLs and they were like, I've never had to provide this information, never heard of it. Like, where did you hear that? And I'm like, well.

HR Anita:

I'm wondering. Yeah, I see exactly where you're saying. And I'm just wondering because you mentioned that the other team leader left the company, and that's why you got these employees that aren't making your staff.

Me:

So they actually went to another TO who's here, and then they moved from her to me, but she's still here.

HR Anita:

And so how long did the other T.L in between between the first person and you, did that T.L have them?

Me:

She had them one month..

HR Anita:

She had them one month. And I just wonder. I'm just.. Okay, so the team leader that sounds like the issue started with that's not here anymore. I don't know if this is a case, I don't know you even know who we're talking about. Nor would I nor would I or should I tell you if that team leader was let go.

Me:

Well, she wasn't let go. She had another job or, you know, already lined up and stuff.,

HR Anita:

I was just making, I was just in my head thinking, if it was a team leader that really wasn't doing their job in coaching and making sure coaches were providing the coaching and all of this, maybe that was the concern for Carfania. I don't know.

Me:

Well, so just to give you like a little context on the coaching part, so we would, this is something we would coach to as TLs, right? So let's say they don't meet utilization, inbound or outbound. We'll meet with them and, you know, let them know, hey, this is, you know, something that could lead to to corrective action, et cetera, et cetera. Right. So he's asking for that documented conversation, but what I'm wanted to tell you is that no TL documents that at this time. So that's not even like a thing.

HR Anita:

How many do you have? So let me ask you. So let me step back on that question first. So did you submit some rock for terms, so it went through the up to Up toR. Did ER approve it?

Me:

ER approved it. Right.

HR Anita:

The ER approved it, then the last person for a rec for term is the director, so it would be Carfania. And then he kicked it back and said, no, that, I got that right?

Me:

Yeah. Yes, yeah. So I submitted it on the seventh and it's been by again.

HR Anita:

How many did you have?

Me:

Two.

HR Anita:

Two. So you had two right for terms that went through all the approvals up until the last approval, which is Caralania and Carfania declined it or wouldn't approve it.

Me:

Correct. Mm.

HR Anita:

Okay. Okay. And so, basically, that's that's the, I guess, evidence for you that lead you that, how do I say that? That where you feel, hey, does this have something to do with my prior complaints or whatever? Because it's out of the norm from what you understand from other leads. Is that right?

Me:

Right. And I've even submitted a performance termination and had it approved in the past with just the same information, you know? So that's why I felt so confident. I'm like, okay, cool. We're good to go. And then I got that feedback. But also, I do, and you may know this or whatever, but so there is a difference on the documentation that is standard between the, like, let's say, conduct or work avoidance related stuff, right, where we're giving more conduct and describing the conversation. or I'm sorry we're giving more context and describing the conversation that we're having with them regarding, you know, hey, we found work avoidance, right?

HR Anita:

Right. Right. Yeah. different kind ofate method include in that.

Me:

Yeah. Yes. Okay. Because he's using that as an example. Like, he wants that. But I'm like, but this is the standard and this is what's been happening. And nobody's still or something. That's interesting. Yeah, and everyone else is like, because when I talk to all the other TLs and I talked to all of them, they were like, well, we don't do that. So like, what's going to happen to our terms?

HR Anita:

Have you taught, when you say you've talked to all of them, are they everybody in Carfagia's organization?

Me:

I'll be in my call channel, so in L bar.

HR Anita:

Okay, so let me tell you what I would like to do, is I and I can either start with, who did you say you report to?

Me:

Alan.

HR Anita:

Oh, yeah. I can start with Alan or I'm straight car. It doesn't really matter. Just kind of want your opinion or your preference, whatever, but I want to, I keep your point. I want to understand what situation difference. Is there confusion and you give them the opportunity to speak to it. Whether that's your DM, Alan, or just go straight to Carfia because I don't know the answer, and I don't I know different areas and I don't know if this is new for Carfia or not, and it's just getting rolled out out or whatever, but just to your point, it needs to be, I don't know if it's been communicated or it needs to be consistent across all the team leaders or whatever. But I do know, it's just like with this painful attendance requirement that was paused for, oh, it was going to be paused until May and then it got popular until now and that it was finally back up. But some of the businesses already had the requirement that is now in place since the 15th, which is document that you had a conversation with the employee that you, yeah, and provided the p's information, blah, blah, blah, or whatever all that is. Right. Did you sit in on the, yeah. So in some businesses, they already had that requirement, and if they weren't doing it, the team leader was getting deemed and coached, and it would escalate if it was, you know, a lot, I don't think any of them escalated to anything more than coaching and their overall month month or whatever. But so, there are some business units that require more regardless of what the requirements are from an HR perspective. So, and I don't know that. It doesn't sound like you're aware of that or or the team leaders are aware of that because who you've talked to hasn't bent with some's the name of the two employees that you submitted it for?

Me:

Adrian Rose and Dawn Jones.

HR Anita:

Dan?

Me:

Yep, yeah, it's D-E J U- A N.

HR Anita:

Yeah, I would never have goneten that right first calling was W. What'd you say the last name was?

Me:

Jones. Jones..

HR Anita:

All right, so that is where I would take it at this point. It at. Yes, I would say.. I just want to make sure we're on the same page.

Me:

Yeah, yeah, no, definitely because I just feel like I'm not getting like a straight answer and yeah, like I would just like to know what is the requirement then? Because it's very, like, mysterious and unclear, you know, like, I'm just not getting straight answers. So if you could talk to Greg, I mean.

HR Anita:

Yeah. I know. That would be. Okay. I just. Yeah, so I will do that. I mean, it's Friday. I don't. Um But I will get on the schedule now. I just Greg have a admin. Do you know?

Me:

Yes. You know what? I think it is.. I can look it up.

HR Anita:

It's. I have access to look it up. But sometimes it's easier to go through the admin just say, hey, can you get me on your schedule?

Me:

Okay.

HR Anita:

Or I'll just look on his schedule, but. I will will do that. So next week, I just kind of wanted to give you my timeline. I mean, I want to get it taken care ofers and later, but next week, I usually take a lot of days off the last two weeks of July, one, because it's a state holiday on Wednesday.

Me:

Oh, cool.

HR Anita:

It's State holiday on the 24th. So I always take that as my personal every year.

Me:

Oh.

HR Anita:

And then it's my son's birthday. So he's coming home from school on.

Me:

Oh, wow.

HR Anita:

Tuesday of next week, and then he's home. through Monday the 29th. So I've got just some intermitt time off. I don't want you to think I just, if I can't get off, I don't and a lot of people take July off, too, but it's just summer, right?

Me:

Yeah..

HR Anita:

Car Carf is in Arizona too, isn't he?

Me:

Yep. Yep, he's in Arizona.

HR Anita:

I would assume Arizona people lead are car. Man, we're like, we're working and we're not taking eight days off because we're stuck in our houses.

Me:

Well, I know, but they travel to somewhere cooler during the summers.

HR Anita:

Yeah. It's. us going to Arizona in the winter months, right? Right in the cold.

Me:

Yeah, we're going to California. That's where the more DCent weather is.

HR Anita:

Yeah, it could be hot, but you' it's, oh, when are you going there?

Me:

Actually, next month. So on the 18th. Yeah, we' we're going to go to Disneyland, Anaheim, and then maybe like drive down to San Diego because I love San Diego, but.

HR Anita:

Yeah. Yeah, a little. You should go there, well, me and my high school friends would go there like every five years for just our kind of reunion.

Me:

Oh, that's such a good idea..

HR Anita:

Yeah, but we usually go to Newport Beach. But the last time that we went to go do it, we decided to go somewhere different and we went to Oregon, which was fun and beautiful and nice and everything, but it was, and it was in June, so it was a little cooler than we would like. And it wasn't quite as much to do as what you can do in Southern California.

Me:

Right. Yeah. Yeah, I't much to do.

HR Anita:

Not that we would go to Disneyland because there's just all of us, you know, girls, not kids, but, so I've been to Disney. Well, I went to Disney. Well, that was quite a while ago, too. Anyway. Okay, so that will be my next step, and I will follow up with you as soon as I can get on his schedule and coordinate that between my time off, because I think I have. I want to say I have two days off next week. I want to say it's Wednesday and Friday, and then I have three days off the following day. But I'd rather get back to you now. next week than, you know, the following week at the end of the week when I'm back. So I will get back to you and so I can better understand why, but I'm glad I have the names. So, and, okay, so they had a formal, a final, where they didn't meet and you guys are collections. So it's they didn't meet, so they hit the formal and they didn't meet three out of five months.

Me:

Right.

HR Anita:

Then they hit the final when they didn't hit two out of five months.

Me:

Yeah.

HR Anita:

And then they hit the wreck for term when they missed one more date, right?

Me:

Right. Four months. Yep. And then boom. And then I got them. So..

HR Anita:

Look at you. Right. All right. I will look into it so I have an understanding and then I'll fall back up with you.

Me:

All righty. Sounds good. Thank you so much.

HR Anita:

Okay. All right. Take care. Stay cool..

Me:

I's. I' stay cool here.

HR Anita:

How are you guys stay cool

Me:

I am? Right. AC blasting.

HR Anita:

Yeah. Well, it's funny because in Utah, most of the houses are lawn, and I know in Arizona it's great more different kind of landscape just because you think you're on green.

Me:

Yeah.

HR Anita:

But the water bills in Utah are \$5,000 to \$100 to \$1,000 a month in the summer. Just because we try to keep our law screen.

Me:

Oh my gosh. You guys have, I mean, and then obviously. Are we have fake grass? Like, a lot of people have like, fake tur for something like that.

HR Anita:

Which is funny because you guys do it well. We have a couple of people in the neighborhood that's got the fake grass. And it's like, did you, you obviously didn't have it done professionally because it's like, you know, it's got wrinkles in it. It, man. I mean, it's like, if you're do that, you gotta do it right.

Me:

Yeah. We have a lot of people now doing just the whole rock plants.

HR Anita:

Yeah, rock. rock.

Me:

Yeah, that's how a lot of people do it here too, with like some rocks. You know, you got your little plants and.

HR Anita:

Yeah. You know, little odd things. Arizona is such a weird landscaping place. But you, what electric goes up because of the running the AC all day? Like, my AC hasn't even come on yet.

Me:

Yeah, well, I have I have the little Google thermostat thing. So, like, if it, there will be times where it'll turn down automatically or it's like set on this like automatic schedule. And then if you reach like a certain level of energy savings, then they send you like gift cards and stuff for like a hundred bucks a month or two...

HR Anita:

Yeah, it's really cool. Yeah, it's really. I've never heard of it. That is funny..

Me:

Yeah, it's called Google Nest. You'll look it up. It's really cool.

HR Anita:

Google Nest, I'm writing it down. That's interesting.

Me:

Mm hmm.

HR Anita:

Okay.. All right, well, Robin Robin. Shauna, I was combining Shauna with Harbin. Sarbie? actually, I just sent a text message to Robin. That's her last name. She's in workforce management because I have a Jaban case that she's saying that EEM tool wasn't working. So she reported her absences, but the EEM tool wasn't working. Well, then why didn't you call?

Me:

Oh, right. I mean, I do believe that because EM has been down or like intermittently down, it seems like, for like the past couple, like, month or so. But I would think that if it lets you know that it didn't work, then you need to use the other methods.

HR Anita:

Right, right. Yeah. I mean, if you get an alert. Or an email. Yeah. Or. Yeah. Yeah. If you're get an alerts. If you're getting an alert, like, why it's. It didn't work and you just, like, go on.

Me:

Yeah. Like, okay, well, it didn't work. I tried.

HR Anita:

Well, no, it's not, that's not, that doesn't work either. So I don't know. I'm trying to get some information just to see how valid that is or isn't. But anyway, her name was Robin. Robin. So her responded to me that Burt.

Me:

Oh, okay, I don't know her.

HR Anita:

Hang on. All right, so then when I said Robin to you, I was like, okay, do you know who I'm talking to? I just just. All right. Okay, well, I appreciate your time and I will follow up for sure. Have a good stay cool and weekend. It is Friday. That's the only good thing about it.

Me:

Right. Yes. Friday. I'm almost done.

HR Anita:

Yes. Oh, thank the Lord.

Me:

Yeah.

HR Anita:

Yes, yes. Thank you. Okay. All right. Take care, Shauna and we'll talk to you soon.

Me:

All right.